



POLICE DEPARTMENT

July 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301370 (Incident Date: February 15, 2023) regarding Sergeant Dino Vucetovic, Tax No. 959347 (DADS No. 2024-30890)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301370, pertaining to Sergeant Dino Vucetovic. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Vucetovic would be detrimental to the Police Department's disciplinary process.

After reviewing the facts and circumstances of the case, the Police Commissioner agrees with the CCRB's determination to substantiate the allegations. However, the Police Commissioner disagrees with the application of the Department's Disciplinary Penalty Guidelines. The Police Commissioner has determined that charges and specifications are not the appropriate form of discipline. The Police Commissioner has determined to use the presumptive penalties for the misconduct, and run them concurrently. Sergeant Vucetovic, in his nine years of service, has had no formal discipline, no prior substantiated CCRB complaints, is rated well above standards, and has been evaluated as performing exceptionally over the last few years.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Sergeant Vucetovic a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days for the substantiated misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

August 6, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. SGT Dino Vucetovic
Disciplinary Case No.: 2024-30890

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 31, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against SGT Vucetovic. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that The Police Commissioner agrees with the CCRB’s substantiation of the allegations on this matter but does not agree that Charges and Specifications are the appropriate form of penalty. The Police Commissioner further determined that the presumptive penalties for each Specification, to run concurrently, with the imposition of a Command Discipline Schedule A, is an appropriate disposition for SGT Vucetovic.

While the CCRB determined that consecutive penalties against SGT Vucetovic were appropriate, the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, and the Commissioner’s judgement in this case is not on its face unreasonable.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

August 7, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301370 (Incident Date: February 15, 2023) regarding Sergeant Dino Vucetovic, Tax No. 959347 (DADS No. 2024-30890)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated August 6, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Dino Vucetovic. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Vucetovic for the reasons expressed in my July 31, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days for the substantiated misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office